

Court No. - 3

Case :- WRIT - C No. - 33546 of 2021

Petitioner :- Mohammad Aslam

Respondent :- State Of U.P And Another

Counsel for Petitioner :- Mohammad Waseem

Counsel for Respondent :- G.A., Mukesh Kumar Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the parties.

2. This writ petition has been filed praying for the following reliefs :

"I. a writ, order or direction in nature of certiorari, quashing the impugned recovery notice dated 12.2.2021 issued by respondent no.2 (Annexure No. 2 to this writ petition).

II. any other suitable writ, order or direction, as this Hon'ble Court may deem fit and proper under the facts and circumstances of the present case."

3. Learned counsel for the petitioner submits that permanent disconnection of the electricity connection was made on 17.10.2001 and yet after about 20 years now the demand is being raised against the petitioner.

4. Shri Mukesh Kumar Singh, learned counsel for the respondent no. 2, states on instructions that the petitioner may file objection against the impugned demand before the respondent no. 2 within two weeks which shall be considered and decided in accordance with law.

5. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent no.2 within two weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no. 2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

6. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 23.5.2022

A. V. Singh